

Zwicker & Associates
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Robert Ross, Esq.
Juris #39402
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May 14, 2026

VIA EMAIL AND CERTIFIED MAIL, RETURN RECEIPT REQUESTED
CONFIDENTIAL SETTLEMENT COMMUNICATION
PURSUANT TO F.R.E. 408 / C.G.S. § 52-193 — NOT ADMISSIBLE AS EVIDENCE

Jeffrey A. Brill, Esq. Juris #719438
Skadden, Arps, Meager, Slate & Flom, LLP
1 Manhattan West, 395 Ninth Avenue
New York, NY 10001
(212) 735-3000

Re: Settlement Offer — Zwicker & Associates v. SARAH H GASTON
Docket No. FSTCV246067791-S
Superior Court, Judicial District of Stamford

Dear Mr. Brill:

This office represents Zwicker & Associates, P.C. ("Counterclaim Defendant") in the above-referenced matter. This letter is transmitted as a confidential settlement communication pursuant to Federal Rule of Evidence 408 and Connecticut General Statutes § 52-193, and shall not be admissible in any proceeding for any purpose, nor shall it constitute an admission of liability, wrongdoing, or the validity of any claim asserted in Counterclaimant's pleadings.

I. BACKGROUND

As you are aware, this matter arises from a collections action filed by Counterclaim Defendant against your client, [Defendant's Name] ("Counterclaimant"), which was subsequently dismissed with prejudice by order of this Court on [date of dismissal]. Counterclaimant has since filed a Counterclaim asserting violations of the Fair Debt Collection Practices Act, 15 U.S.C. § 1692e and § 1692f, the Connecticut Unfair Trade Practices Act, Conn. Gen. Stat. § 42-110b, and a common law claim for abuse of process (collectively, the "Counterclaim").

Counterclaim Defendant denies each and every allegation of wrongdoing set forth in the Counterclaim and maintains that its conduct at all times was lawful and undertaken in good faith. Nevertheless, Counterclaim Defendant recognizes the costs, burdens, and uncertainties inherent in continued litigation and, without any admission of liability whatsoever, hereby extends the following settlement proposal in the interest of resolving this matter expeditiously and amicably.

II. SETTLEMENT OFFER

Counterclaim Defendant hereby offers to resolve all claims asserted in the Counterclaim, and all claims that could have been asserted arising out of or related to the subject debt and the Collections Action, on the following terms:

1. Settlement Payment

Counterclaim Defendant agrees to pay to Counterclaimant the total sum of **\$636,954.58** (the "Settlement Payment"), allocated as follows:

- (a) **\$581,066.80** in full satisfaction of any claimed actual damages, including but not limited to defense costs, credit-related damages, and alleged consequential losses;
- (b) **\$52,394.39** in full satisfaction of any claimed statutory damages under 15 U.S.C. § 1692k;
- (c) **\$3,493.39** in full satisfaction of any claimed attorney's fees and costs incurred in connection with this matter, whether pursuant to 15 U.S.C. § 1692k(a)(3), Conn. Gen. Stat. § 42-110g(d), or any other fee-shifting provision.

The Settlement Payment shall be tendered by certified check made payable to either Defendant's Counsel's Trust Account or SARAH H GASTON directly, to be within **[21 / 30] days** of full execution of a mutually acceptable written Settlement Agreement and Release.

2. Dismissal of Counterclaim

Upon receipt of the Settlement Payment, and verification of available funds from the payment, Counterclaimant agrees to file a Stipulation of Dismissal of the Counterclaim with prejudice, with each party bearing their own costs except as provided herein.

3. Credit Reporting Relief

Within **7 days** of full execution of the Settlement Agreement, Counterclaim Defendant agrees to re-submit deletion requests to all consumer reporting agencies — including Equifax, Experian, and TransUnion — to which it furnished any adverse information in connection with the subject account, bearing account numbers ending in 6462857 and 6462237. Counterclaim Defendant

shall provide Counterclaimant's counsel with written confirmation of said submissions within the same timeframe.

4. Mutual Release

The parties shall execute a mutual general release of all claims, known and unknown, arising out of or relating to: (a) the subject debt; (b) the Collections Action; and (c) the Counterclaim. The release shall be broad and bilateral, extinguishing any further exposure on either side arising from the facts alleged in this litigation.

5. No Re-Sale or Re-Assignment of Debt

Counterclaim Defendant represents and warrants that it will not re-sell, re-assign, or otherwise transfer any purported claim to the subject debt to any third party, and will mark the account as closed, satisfied, and not subject to further collection in its internal records.

6. Confidentiality

The existence, terms, and amount of this settlement shall be kept strictly confidential by Counterclaimant and his/her counsel, except as may be required by law, court order, or as necessary for tax reporting purposes. Counterclaimant agrees not to disclose the Settlement Payment amount to any third party, including but not limited to media outlets, consumer advocacy organizations, or online review platforms.

7. Non-Disparagement

The parties agree to refrain from making any disparaging, negative, or defamatory statements — whether oral or written, public or private — regarding the other party, this litigation, or its resolution, including on social media, review websites, or to any press or media outlet.

8. No Admission of Liability

This offer and any resulting settlement agreement shall not constitute, and shall not be construed as, an admission of liability, fault, wrongdoing, or the validity of any claim by Counterclaim Defendant.

9. Court Retention of Jurisdiction

The parties consent to this Court retaining jurisdiction over enforcement of the Settlement Agreement for a period of one year or until the payment obligation is fully satisfied.

III. EXPIRATION OF OFFER

This offer shall remain open for acceptance until **5:00 p.m. Eastern Time on May 28, 2026**, after which time it is automatically withdrawn without further notice. Time is of the essence.

IV. NEXT STEPS

Should your client find these terms acceptable in principle, please contact the undersigned at your earliest convenience to discuss finalizing the Settlement Agreement and Release. Counterclaim Defendant is prepared to circulate a draft agreement promptly upon indication of acceptance.

Should your client wish to negotiate the terms hereof, Counterclaim Defendant remains open to reasonable discussion, without prejudice to this offer.

Sincerely,

A handwritten signature in black ink, appearing to read 'R. Ross', with a stylized flourish at the end.

Robert Ross, Esq.
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